[4310-84]

Title 43—Public Lands: Interior

CHAPTER II—BUREAU OF LAND MANAGEMENT; DEPARTMENT OF THE INTERIOR

APPENDIX—PUBLIC LAND ORDERS

[A-7950; Public Land Order 5637]

ARIZONA

Prior Amendment of Executive order No. 8039; Prior Revocation of Public Land Order No. 5492; Clarification of Administration and Management Under National Wildlife Refuge System Administration Act; Change of Name to Kofa National Wildlife Refuge

AGENCY: Bureau of Land Management (Interior).

ACTION: Final rule.

SUMMARY: This public land order changes the name of the Kofa Game Range to the Kofa National Wildlife Refuge. Also, it affords notice of prior statutory action taken to revoke or revise public land orders or Executive orders, as necessary, to change the administration and management of the refuge area in accordance with Pub. L. 94-223.

EFFECTIVE DATE: May 3, 1978.

FOR FURTHER INFORMATION CONTACT:

Eldon G. Hayes, 202-343-8731.

By virtue of the authority that is vested in the Secretary of the Interior by law, including the authority that is vested in him by section 204 of the Act of October 21, 1976 (Pub. L. 94-579, 90 Stat. 2751), and in accordance with the Act of February 27, 1976 (Pub. L. 94-223, 90 Stat. 199), which amended section 4(a) of the National Wildlife Refuge System Administration Act of 1966 (16 U.S.C. 668dd(a)), it is ordered as follows:

1. The Act of February 27, 1976 (Pub. L. 94-223, 90 Stat. 199), which amended Section 4(a) of the National Wildlife Refuge System Administration Act of 1966 (16 U.S.C. 668dd(a)), provides that units of the National Wildlife Refuge System, including the Kofa Game Range, shall be administered by the Secretary of the Interior exclusively through the United States Fish and Wildlife Service. Accordingly, notice is hereby given that effective as of February 27, 1976 and by virtue of Pub. L. 94-223, supra:

(a) Public Land Order No. 5492 of March 21, 1975 (40 FR 14054), which provided for the transfer of all of the Secretary's delegable authority for the operation and administration of the Kofa Game Range, as described in the aforesaid orders, to the Bureau of Land Management, was revoked; and such authority was, and is now, vested solely in the United States Fish and Wildlife Service;

(b) The operation and administration of the Kofa Game Range, including grazing, was to be administered, and is now being administered, in accordance with the National Wildlife Refuge System Administration Act, as amended, except that those holding grazing privileges, validly issued by the Bureau of Land Management and in effect on Feburary 27, 1976, are permitted to continue such privileges under terms and conditions imposed by the Taylor Grazing Act, and implementing regulations, until those privileges expire. The renewal or initiation of grazing privileges subsequent to February 27, 1976, is in accordance with the National Wildlife Refuge System Administration Act, as amended, and implementing regulations.

(c) Executive Order No. 8039 of January 25, 1935 (4 FR 438), which established the Kofa Game Range, was modified to the extent necessary for it to conform to the provisions of (a) and (b), above.

2. The name of the Kofa Game Range, as so designated by Executive Order No. 8039 of January 25, 1939 (4 FR 438), is hereby changed to the Kofa National Wildlife Refuge.

3. This order does not affect or alter in any respect the Notice of Proposed Withdrawal, A-7950 of February 26, 1974, relating to the Kofa Game Range, as published at 39 FR 8640.

Dated: April 25, 1978.

GUY R. MARTIN,
Assistant Secretary of the Interior.

[FR Doc. 78-12035 Filed 5-2-78; 8:45 am]

[4310-84]

[A-7951; Public Land Order 5636]

ARIZONA

Prior Amendment of Executive Order No. 8038; Cabeza Prieta National Wildlife Refuge; Clarification of Administration and Management Under National Wildlife Refuge System Administration Act

AGENCY: Bureau of Land Management (Interior).

ACTION: Final rule.

SUMMARY: This public land order affords notice of prior statutory action taken to revise Executive Order No. 8038, as necessary, to change the administration and management of the Cabeza Prieta National Wildlife Refuge in accordance with Pub. L. 94-223.

EFFECTIVE DATE: May 3, 1978.

FOR FURTHER INFORMATION CONTACT:

Eldon G. Hayes, 202-343-8731.

By virtue of the authority that is vested in the Secretary of the Interior by law, including the authority that is vested in him by section 204 of the Act of October 21, 1976 (Pub. L. 94-579, 90 Stat. 2751), and in accordance with the Act of February 27, 1976 (Pub. L. 94-223, 90 Stat. 199), which amended section 4(a) of the National Wildlife Refuge System Administration Act of 1966 (16 U.S.C. 668dd(a)), it is ordered as follows:

1. The Act of February 27, 1976 (Pub. L. 94-223, 90 Stat. 199), which amended section 4(a) of the National Wildlife Refuge System Administration Act of 1966 (16 U.S.C. 668dd(a)), provides that units of the National Wildlife Refuge System, including the Cabeza Prieta Game Range, the name of which was changed to the Cabeza Prieta National Wildlife Refuge by Public Land Order No. 5493 of March 21, 1975 (40 FR 14315), as amended by Public Land Order No. 5502 of June 10, 1975 (40 FR 25593), shall be administered by the Secretary of the Interior exclusively through the United States Fish and Wildlife Service. Accordingly, notice is hereby given that effective as of February 27, 1976 and by virtue of Pub. L. 94-223, supra:

(a) The operation and administration of the Cabeza Prieta National Wildlife Refuge, including grazing, was to be administered, and is now being administered, in accordance with the National Wildlife Refuge System Administration Act, as amended, except that those holding grazing privileges, validly issued by the Bureau of Land Management and in effect on February 27, 1976, are permitted to continue such privileges under terms and conditions imposed by the Taylor Grazing Act, and implementing regulations, until those privileges expire. The renewal or initiation of grazing privileges subsequent to February 27, 1976, is in accordance with the National Wildlife Refuge System Administration Act, as amended, and implementing regulations.

(b) Executive Order No. 8038 of January 25, 1939 (4 FR 437), which established the Cabeza Prieta National Wildlife Refuge as the Cabeza Prieta Game Range, was modified to the extent necessary for it to conform to the provisions of (a), above.

2. This order does not affect or alter in any respect the Notice of Proposed Withdrawal, A-7951 of February 26, 1974, relating to the Cabeza Prieta National Wildlife Refuge, as published at 39 FR 8640.

Dated: April 25, 1978.

GUY R. MARTIN,
Assistant Secretary of the Interior.

[FR Doc. 78-12036 Filed 5-2-78; 8:45 am]